

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Law and Motion, Complex Law and Motion, and UD Law and Motion Calendars
Honorable Nicole S. Healy
800 N. Humboldt Street, San Mateo CA 94401
Department 28, Courtroom I
Wednesday, August 12, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM **LINE 1**

23-CIV-01468

LUIS URQUILLA VS JOSHUA'S MOVING PACKING SERVICES, LLC

LUIS ALEXANDER URQUILLA
JOSHUA'S MOVING PACKING SERVICES, LLC

KEVIN MAHONEY
CHRISTOPHER J. OLSON

PLAINTIFFS' MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

TENTATIVE RULING:

Plaintiffs Luis Alexander Urquilla and Melkin A. Menjivar's Motion for Approval of Class Action and PAGA Settlement is **DENIED without prejudice.**

On January 7, 2026, the court denied the parties' motion for preliminary approval of this class action settlement for failure to resubmit a renewed motion that addressed issues previously identified by the court. On July 29, 2026, the court denied the parties' stipulation to continue the deadline to file the amended motion for preliminary approval.

This is the second time the parties have submitted a motion for preliminary approval, and the third time the parties have come before this court attempting to obtain approval of settlement. The parties have again failed to address the deficiencies identified by the court which precluded approval of the settlement, and new issues have arisen.

The Second Amended Settlement Agreement, attached to plaintiffs' counsel Kevin Mahoney's declaration, is unsigned. Mr. Mahoney's declaration is also unsigned. The parties and Mr. Mahoney shall correct these issues.

In its January 7, 2026 order the court noted that the Net Settlement Amount (NSA) was again inconsistently reported. The parties have failed to remedy this issue. The motion and proposed notice report the NSA as \$24,334, while Mr. Mahoney's declaration states that the "net fund" will be \$32,099.33. The parties must clarify the NSA.

Relatedly, the parties have inconsistently reported the average individual settlement payments. Taylor Mitzner of settlement administrator Phoenix Settlement Administrators (Phoenix) states in her declaration that the average individual settlement share will be \$715.71, while Mr. Mahoney reports it as \$867.55.

The papers also inconsistently represent the class size: Ms. Mitzner bases her calculations on a class size of 34, but the motion and Mr. Mahoney's declaration state that it is 37.

The settlement administrator payment is reported as four different amounts in four different documents. The motion states that it is \$10,000, the settlement agreement states that it is \$5,000, the proposed notice states that it is \$6,000, and the declaration of Michael Moore on behalf of

Phoenix attached to Mr. Mahoney's declaration as Exhibit F states that it is \$6,500. The parties shall clarify this.

The court's January 7, 2026 Order pointed out a number of issues with plaintiffs' declarations and directed plaintiffs to address these issues in updated declarations in support of the motion. Plaintiffs have failed to file declarations in support of this motion.

The prospective class representative must file a declaration stating that the person desires to represent the class and understands the fiduciary obligations of serving as class representative. Counsel's declaration to that effect will not suffice. [*Jones v. Farmers Ins. Exchange* (2013) 221 CA4th 986, 998, 164 CR3d 633, 643; *Imperial County Sheriff's Ass'n v. County of Imperial* (2023) 87 CA5th 898, 919-920, 303 CR3d 875, 894-895—Ps failed to meet burden to show they were adequate representatives of class where they failed to file declarations to that effect, but failure did not justify denial of class certification motion, and trial court should have allowed Ps an opportunity to submit supporting declarations from proposed class representatives].

(Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2026 Update) ¶ 14:26.) Plaintiffs must file declarations. The court also notes that in the motion, plaintiffs cite caselaw regarding "settlement allocation" issues that have no bearing here and do not support a finding that plaintiffs are adequate representatives.

In the proposed notice, in the section titled "Fee and Expense Award to Class Counsel," the parties failed to insert the amount of their requested fees. The section titled "You can object to the Settlement" has the wrong department number and address for this Court. It should be corrected to Department 28, which is located at 800 North Humboldt Street, San Mateo, California 94401. In the section titled "When is the next Court hearing," the parties shall correct "Nealy" to "Healy." In the section titled "What if I need more information?," it states that the settlement is attached "to the Declaration of Kevin Mahoney and Berkeh Alemzadeh," but the settlement is attached only to the Mahoney Declaration. The parties shall correct these errors.

Lastly, the settlement agreement states that money from uncashed checks will be sent to Legal Aid at Work. The parties must request the court's approval of this *cy pres* recipient and confirm that they have no conflicts of interest with the recipient. (Code Civ. Proc, § 384, subd. (b).)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 2**

23-CIV-03441

TREVOR ZLATUNICH VS PRIME COMMUNICATIONS, L.P.

TREVOR ZLATUNICH
PRIME COMMUNICATIONS, L.P.

DANIEL BROME
JANINE M. BRAXTON

PLAINTIFF'S MOTION FOR APPROVAL OF PAGA SETTLEMENT AND AWARD OF ATTORNEYS' FEES AND COSTS AND
SETTLEMENT ADMINISTRATION COSTS

TENTATIVE RULING:

Plaintiff Christopher Gonzales's motion for approval of PAGA settlement is **DENIED without prejudice**.

The proposed settlement amount is \$439,500.00. The settlement will provide a payment of \$205,631.50 to the California Labor and Workforce Development Agency (i.e., 75% of the \$274,175.33 Net Settlement Amount). The remaining \$68,543.83 will be distributed amongst the aggrieved employees.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 66 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]); *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 ["The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement."]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

The court has identified several issues that preclude it from granting the motion at this time. The parties must provide the requested information in an amended motion for approval.

Plaintiff shall clarify the number of class members. According to the motion, it is estimated that there are approximately 2,375 aggrieved employees, but the Settlement reports this as 2,435 aggrieved employees. (MPA, at p. 5:8; Settlement, ¶ 3(a)(6).)

The court requests additional information about how the settlement amount was reached. Plaintiff's counsel provides estimated damages for one cause of action: failure to pay wages. However, plaintiff's PAGA action is based on eight other underlying claims, and plaintiff's counsel fails to estimate damages for any of those claims. Additionally, while plaintiff's counsel generally discusses defendant's defenses, he does not explain what specific discounts were made based on which defenses and risks. The court is therefore unable to determine whether the settlement is a reasonable compromise of the claims. This is particularly important where the parties did not use the assistance of a mediator.

Plaintiff shall also discuss the deterrent effect of the settlement. Based on a simple average, the court finds that the individual payment amounts will be less than \$30. While this is not grounds for denial of the settlement, the court would like additional information as to why this settlement is meaningful considering the relatively small payments.

The court further requests additional information for performing a lodestar cross-check of the requested attorneys' fees.

Courts often cross-check fee awards using both methods: i.e., a lodestar approach as compared to a percentage of the common fund approach. [*In re Consumer Privacy Cases* (2009) 175 CA4th 545, 557, 96 CR3d 127, 136; *Laffitte v. Robert Half Int'l Inc.* (2016) 1 C5th 480, 504, 205 CR3d 555, 574 — lodestar cross-check provides a mechanism for bringing objective measure of the work performed into the calculation of reasonable attorney fee; *In re Apple Inc. Device Performance Litig.* (9th Cir. 2022) 50 F4th 769, 784 — although cross-check is discretionary, federal courts are encouraged to cross-check fee awards using both methods, particularly when using percentage-of-recovery method]. [¶] In cross-checking, courts are not required to scrutinize hours as closely as in a traditional lodestar calculation, but may use 'counsel declarations summarizing overall time spent, rather than demanding and scrutinizing daily time sheets in which the work performed was broken down by individual task.' [*Laffitte v. Robert Half Int'l Inc.*, *supra*, 1 C5th at 505, 205 CR3d at 574].

(Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2026 Update) at ¶ 14:145.2a.)

Both firms representing plaintiff must provide summaries of the overall time spent on tasks by each attorney. Additionally, Ms. Fisher shall provide authority supporting the requested rates for the individuals at her firm. The court notes that plaintiff's counsel's requested fee of \$146,500.00 represents a lodestar multiplier of 1.19 based on their reported lodestar of \$122,910.50, but the parties have not provided any justification for a multiplier. The court requests that they do so.

Weil & Brown states that "[o]nce the court has fixed the lodestar, it may increase *or decrease* that amount by applying a positive or negative 'multiplier' to take into account a variety of other factors, including:

- the quality of the representation;
- the novelty and complexity of the issues;
- *the results obtained*; and
- the contingent risk presented. [*PLCM Group, Inc. v. Drexler* (2000) 22 C4th 1084, 1096, 95 CR2d 198, 206-207; *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 CA4th 819,

833, 112 CR2d 284, 293; *Laffitte v. Robert Half Int'l Inc.* (2016) 1 C5th 480, 489, 205 CR3d 555, 561]

(Weil & Brown, *supra*, ¶ 14:145.1, emphasis in original.)

Counsel's requested costs are appropriate but notes that Ms. Fisher's cost estimate chart includes several entries for "Palitz *Pro Hac*." As Mr. Palitz also states that he incurred costs for pro hac fees, counsel shall clarify that there are no duplicate costs between the firms.

Further, Mr. Palitz was admitted pro hac vice on February 28, 2024. His status lapsed when he failed to pay his renewal fee. (See Declaration of Michael Palitz, filed on January 20, 2026, ¶ 2.) He was re-admitted pro hac vice on March 12, 2026. Mr. Palitz is directed to identify the period of time during which he was not admitted to appear before this court pro hac vice. He is further directed to advise the court whether any of the attorney's fees he requests for his firm were incurred during the period in which his pro hac vice application had lapsed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 3**

23-CIV-05709

MIKHAIL MAALLOULI VS. MATTHEW TODD FREDRICKSEN, ET AL

MIKHAIL MAALLOULI
MATTHEW TODD FREDRICKSEN

NATALIE KORDNAIJ

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Navid T. Nour to be relieved as counsel of record for plaintiff Mikhail Maalouli is **DENIED without prejudice**. The court's May 19, 2026 Order Shortening Time, required counsel to serve the moving papers and the order on plaintiff by U.S. mail, return receipt requested, and by email and text message. To date, no proof of service has been filed.

2:00 PM **LINE 4**

24-CIV-03850

ROBERT M. KEARNS VS. ROBERT LAWRENCE ROSENBERG, ET AL

ROBERT M. KEARNS
ROBERT LAWRENCE ROSENBERG

CARTER M. ZINN

DEFENDANT'S MOTION TO COMPEL NEUROPSYCHOLOGICAL EXAMINATION OF PLAINTIFF ROBERT M. KEARNS

TENTATIVE RULING:

Defendant Estate of Robert Lawrence Rosenberg (deceased)'s unopposed motion for an order compelling plaintiff Robert M. Kearns to attend and complete a neuropsychological examination with Dr. William McMullen, a clinical neuropsychologist, and to permit the exchange of raw data and audio recording of the examination only between defendant's expert and a neuropsychologist or other similar expert retained by plaintiff, and not to plaintiff's counsel, is **GRANTED**.

Defendant's request for judicial notice of seven exhibits is **GRANTED**. (Evid. Code §§ 452, subd. (c); 453.)

A. Background

This case arises from an injury accident between plaintiff, a cyclist, and defendant who was driving a motor vehicle. The complaint alleges complex injuries including orthopedic injuries and a brain injury, allegedly involving cognitive and behavioral impairments. Plaintiff also alleges ongoing orthopedic, neurological, and psychological complaints and the need for future treatment regarding these complaints.

Plaintiff has agreed to attend a defense neuropsychological exam, however a dispute remains as to the parameters of the exam, giving rise to the instant motion. Pursuant to Code of Civil Procedure, section 2032.320, subdivision (a), defendant asserts good cause exists for plaintiff to submit to the neuropsychological exam but seeks to protect the integrity of test materials, audio files, and disseminate raw data and audio recording of the testing part of the examination only to an expert retained by plaintiff, and not to plaintiff's counsel.

B. Legal Standard

A defendant generally may obtain a mental examination of a plaintiff if the plaintiff has placed his or her mental condition in controversy. (Code Civ. Proc. § 2032.020, subd. (a).) To do so, a defendant must seek leave of court by motion pursuant to Code of Civil Procedure section 2032.310, subdivisions (a) & (b), as defendant has done here.

C. Discussion

It is undisputed that plaintiff has placed his cognitive functions and abilities at issue and that defendant therefore is entitled to ask plaintiff to submit to an appropriate medical examination. (Code Civ. Proc. § 2032.020 subd. (a).) Under Code of Civil Procedure, section 2032.530, subdivision (a), both the examiner and examinee have the right to an audio recording of the testing part of the examination. The primary issue before the court is whether the test materials and test data will be released to plaintiff's counsel or only to an expert retained by plaintiff who may then review the data with plaintiff's counsel.

As noted above, this motion is unopposed. Defendant's position is that the disclosure of the requested documents is, at the least, oppressive and burdensome on Dr. McMullen as a licensed professional with a longstanding ethical duty to maintain test materials in confidence to preserve the validity of the results of such tests. Defendant also argues that releasing test procedures to non-psychologists can threaten test security.

Randy's Trucking, Inc. v. Superior Court (2023) 91 Cal.App.5th 818, the leading authority on this question, recognizes that trial courts have discretion to grant such motions. Here, plaintiff has not filed an opposition nor proposed a protective order. There is no reason to believe that issuing an order directing that the data should be provided only to plaintiff's expert, once that person is retained, and not to counsel, will negatively affect plaintiff's trial preparation. Accordingly, the court finds there is good cause to grant the motion because plaintiff has placed his current and future cognitive functions and abilities at issue. Further, the parameters placed on sharing of the data acknowledge the sensitivity of the materials and audio recording, while giving plaintiff appropriate access to the information. Moreover, this order does not preclude plaintiff from requesting a written summary of the results of Dr. McMullen's examination of plaintiff, and any opinions he formed as a result of that examination.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 5**

24-CLJ-07838

CAPITAL ONE N.A. VS. ERIN K SULLIVAN

CAPITAL ONE N.A.
ERIN K. SULLIVAN

ALEXANDER BALZER CARR
PRO PER

PLAINTIFF'S AMENDED MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS
BE DEEMED ADMITTED

TENTATIVE RULING:

Capital One, N.A.'s Amended Motion for Order that Matters in Request for Admission of Truth of Facts Be Deemed Admitted, Set One, is **GRANTED**.

Plaintiff has not provided the correct address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff's counsel, Gregory Parks, states in his declaration that on January 7, 2025 plaintiff served its Requests for Admissions, Set One, on defendant by mail. (Parks Decl., ¶ 2, and exh. 1.) Mr. Parks further declares that "[p]laintiff has received no response to these requests for admissions." (*Id.*, ¶ 3.) "Therefore, plaintiff requests that the truth of facts specified be deemed admitted." (Mot., at p. 4.)

Code of Civil Procedure, section 2033.280, subdivision (b), provides that if a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. If the moving party makes a request for an order deeming responses admitted the court is required to grant such motion unless it finds that before the hearing on the motion the party to whom the requests for admission have been directed has served a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure, sections 2033.210–2033.230. (Code Civ. Proc. § 2033.280, subd. (c).)

It is well-settled that once a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221.) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer. (*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

Defendant Erin K. Sullivan did not request an extension, failed to serve anything by the response deadline, and to date has served no responses. Nor has she filed a brief in opposition to the instant motion. In the complete absence of Sullivan's response and on the presence of plaintiff's request, the court must grant the motion to deem responses to the requests for

admission, set one, as admitted is **GRANTED**. The genuineness of any documents and the truth of any matters in plaintiff's Requests for Admission, Set One, are deemed admitted

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 6**

25-CIV-00298

GREGORY P. MANDANIS VS. CITY OF FOSTER CITY, ET AL

GREGORY P. MANDANIS
CITY OF FOSTER CITY

PRO PER
CAROLINE E. ROGERS

DEFENDANT CITY OF FOSTER CITY'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

The City of Foster City's unopposed Motion for Judgment on the Pleadings is **DENIED without prejudice.**

Defendant served its motion by email, notwithstanding that the court's file does not indicate that the pro per plaintiff has agreed to accept service by email. Mamdanis has not responded to the motion. Accordingly, there is an insufficient showing that Mamdanis has received notice of the motion. It thus appears the court "lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 7**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO PER
DANIELLE K. LEWIS

PLAINTIFF'S SECOND AMENDED MOTION TO COMPEL FURTHER RESPONSES REGARDING THE DEFENDANT'S
RESPONSES TO REQUEST FOR ADMISSIONS SET 5

TENTATIVE RULING:

Plaintiff's Second Amended Motion to Compel Further Responses Regarding the
Defendant's Responses to Request for Admissions Set 5, filed June 30, 2025, is **DENIED**.

The parties are reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

In his Notice of Motion, plaintiff did not provide the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, California 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Requests for Admission Set #5 on December 16, 2025. (Ramos Decl., ¶ 2.) On January 8, 2026, plaintiff filed an initial version of the instant "Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions [sic] Set 5." Plaintiff filed an amended version of that initial motion on January 12, 2026. However, the court *sua sponte* ordered the motion concerning the Requests for Admission (RFAs) Set No. 5 off-calendar, and scheduled an IDC instead. (Order, January 16,

2026.) Plaintiff filed a motion directed to compelling further responses to the RFA Set No. 5, a declaration, and a separate statement on March 11, 2026; a first amended version on March 25, 2026; and then filed the instant Motion, which includes a declaration and separate statement on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The court addressed the initial version of the Motion at an IDC. (Minute Order, February 26, 2026.) There, the Commissioner found that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, Feb. 26, 2026, at pp. 1-2.)

The Commissioner stated that "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (Minute Order, Feb. 26, 2026, at p. 2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon Plaintiff's earlier motion to compel further responses to his Request for Production (RFP), Set One. (*Id.*, at p. 3; see Minute Order, Dec. 17, 2025.) Accordingly, the Commissioner noted that plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, Feb. 26, 2026, at p. 3.)

Plaintiff brings the instant Motion seeking to compel defendant to respond further to all 52 RFAs in Set No. 5.

The motion and the reply were each filed a day late. (Code Civ. Proc., § 1005, subd. (b).) Defendant waived objections to the tardiness of the motion by timely filing an opposition. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929 ["It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion."].) Plaintiff is admonished to comply with the California Rules of Court.

In opposing the motion, defendant argued, in part, that "Plaintiff submitted a declaration for additional discovery with this set of discovery," but that the declaration fails to comply with statutory requirements, including those in Code of Civil Procedure, section 2033.040. (Opp., at pp. 4:27-6:5.) The Declaration of Danielle K. Lewis in support of defendant's Opposition stated that a copy of plaintiff's RFAs Set No. 5 were attached as Exhibit C. (Lewis Decl., ¶ 5.) However, defendant did not attach Exhibit C — or any of the other exhibits referenced — to the Lewis Declaration.

Plaintiff's declaration for additional discovery was not properly before the court. Accordingly, the hearing of this motion was continued from July 22, 2026 to August 12, 2026 because the court lacked sufficient evidence to rule. The parties were ordered to do the following:

- No later than July 29, 2026, defendant shall file a supplemental declaration with the exhibits inadvertently omitted from its previous supporting declaration, along with any declaratory statements or exhibits evidencing the number of special interrogatories served by plaintiff in this matter. Defendant may concurrently file a supplemental opposition brief, not to exceed ten pages in length, addressing the sufficiency of plaintiff's RFAs Set No. 5 declaration justifying additional discovery and the totality of special interrogatories propounded by plaintiff on defendant in this matter.
- No later than August 5, 2026, plaintiff may likewise file a supplemental reply brief not to exceed ten pages and a supplemental declaration addressing those same issues.

On July 29, and August 5, 2026, respectively, the parties filed their supplemental papers. (Also on August 5, 2026, plaintiff filed amended supplemental papers, but did not explain what was amended.) Defendant filed a declaration which attached all the plaintiff's discovery requests, including RFAs No. 5, which included his declaration for additional discovery. Plaintiff contended that serving 52 requests for admissions was justified because "there are dozens of potential witnesses and dozens of potential locations of relevant evidence. In these requests for admission I am attempting to determine which witnesses have and have not been found, and I am attempting to determine which locations have and have not been searched. . . ." (Lewis Supp. Decl., filed July 29, 2026, exh. C, at pp. 122-123 of 528.)

B. Legal Standards

"California courts have recognized that requests for admission differ in purpose from other commonly used discovery devices, such as interrogatories, document demands, or depositions. Although the requests for admission mechanism is included in the Civil Discovery Act (Code Civ. Proc., § 2016.010 et seq.), it has long been recognized that requests for admission are 'not really a discovery procedure.'" (*City of Glendale v. Marcus Cable Assocs., LLC* (2015) 235 Cal.App.4th 344, 352 (*City of Glendale*), citation omitted.) That is, "requests for admission serve to narrow discovery, eliminate undisputed issues, and shift the cost of proving certain matters. As such, the requests for admission mechanism is not a means by which a party obtains additional information, but rather a dispute-resolution device that eliminates the time and expense of formal proof at trial." (*Id.*, at pp. 353-354.)

A party may propound up to 35 RFAs, excluding those relating to the genuineness of documents. (Code Civ. Proc., § 2033.030, subd. (a).) If the proponent seeks to propound additional RFAs, they must serve a declaration explaining the total number previously propounded, the specific statutory reason for the additional RFAs, and reasons justifying the

additional number of requests. (*Id.*, §§ 2033.040, 2033.050.) Absent a sufficient declaration, the responding party need only respond to the first 35 RFAs. (*Id.*, § 2033.030, subd. (b).)

C. Discussion

Plaintiff's declaration does not demonstrate that more than 35 RFAs are warranted because of "the complexity or the quantity of the existing and potential issues" in this lawsuit. (Code Civ. Proc., § 2033.040, subd. (a).) The lawsuit involves an alleged assault on plaintiff by a fellow passenger on a bus operated by defendant. The case does not involve complex issues or a large number of issues. Moreover, the requests seek discovery, and not admissions that are intended to narrow the facts in dispute and streamline the trial.

Plaintiff has not shown in his moving papers, or on reply, or in his supplemental reply that there is any basis for requiring defendant to respond to more than 35 RFAs in this case. Moreover, in reviewing the RFAs, Set No. 5 and the responses (see Lewis Supp. Decl., filed July 29, 2026, exh. D, beginning at p. 124 of 528), the court notes that the requests do not ask defendant to admit any facts or legal theories with the objective of narrowing issues for trial. Rather, as admitted in plaintiff's declaration, they seek discovery of the identities of witnesses as well as "locations have and have not been searched." As noted above, RFAs are not a discovery device but are "a dispute-resolution device that eliminates the time and expense of formal proof at trial." (*City of Glendale, supra*, 235 Cal.App.4th at p. 354.) Plaintiff's RFAs are not addressed to narrowing the issues for trial, but are addressed to obtaining evidence. That is not what RFAs are designed to do. Accordingly, the court denies the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 8**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO PER
DANIELLE K. LEWIS

PLAINTIFF'S THIRD AMENDED MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES
SET NO. 12

TENTATIVE RULING:

Plaintiff's Third Amended Motion to Compel Further Responses to Plaintiff's Special Interrogatories Set #12 is **DENIED**.

The parties are reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

On November 14, 2025, plaintiff served defendant with his SROGs Set No. 12, along with his SROGs Set No. 13 and Requests for Admission Set No. 5. (Supp. Lewis Decl., ¶ 18, exh. A.) Defendant responded to all three sets of discovery on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff initially filed a motion to compel further responses on all three sets of discovery to January 8, 2026. However, the court *sua sponte* ordered the motion off-calendar and scheduled an IDC instead. (Order, January 16, 2026.) The parties did not resolve the discovery dispute at the IDC and plaintiff filed a motion to compel on March 11, 2026. Plaintiff filed a "First Amended" and Second Amended" version of the motion on March 26, 2026, and a "Third Amended" version on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The court scheduled a second IDC to discuss plaintiff's SROGs Set No. 13 and RFAs Set No. 5 for February 26, 2026, and a third IDC for SROGs Set No. 12 and plaintiff's Form Interrogatories Set No. 2, for March 16, 2026. However, the discussions at the February 26, 2026 IDC covered all four motions and the later hearing was vacated. (Minute Order, February 26, 2026.) The Commissioner stated that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, at pp.1-2.) The Commissioner noted that "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (*id.*, at p. 2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon plaintiff's earlier motion to compel further responses to his Request for Production (RFP), Set One (*id.*, at p. 3). (*See* Minute Order, December 17, 2025.) Accordingly, the Commissioner stated that plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, February 26, 2026, at p. 3.)

Plaintiff brings the instant Motion seeking to compel defendant to respond further to the 66 outstanding special interrogatories of the 68 special interrogatories in SROGS Set No. 12.

Plaintiff disputes the Commissioner's characterization that his discovery requests sought information regarding how SamTrans performed a diligent search and reasonable inquiry in its response to his RFP Set No. 1. (Ramos Decl., ¶ 10.) However, a review of the 66 special interrogatories to which plaintiff seeks further responses demonstrates that they are aimed at obtaining information regarding defendant's efforts to respond to plaintiff's RFP Set No. 1. Indeed, plaintiff himself acknowledges this: "PLAINTIFF's special interrogatories generally span inquiries about DEFENDANT's efforts to locate & produce the records requested in PLAINTIFF's Request for Production Set #1." (MPA, at p. 6:11-13.)

Defendant argues that the 68 special interrogatories in SROGs Set No. 12 alone are nearly double the limit of 35 for which no supporting declaration justifying the requests is needed, and that plaintiff has served over 360 special interrogatories on defendant in this matter. (Opp., at p. 1:17-28.) Defendant further contends that plaintiff's declaration justifying additional interrogatories fails to comply with the requirements of Code of Civil Procedure, section 2030.050, subdivision (b). Defendant's initial supporting declaration stated that a copy of plaintiff's SROGs Set No. 12 is attached as Exhibit A to the Declaration of Danielle Lewis. (Lewis Decl., ¶ 4.) However, defendant apparently inadvertently failed to attached Exhibit A – and all of its other exhibits – to that declaration.

Plaintiff's moving papers did not directly address his supporting declaration but disputed defendant's claim that he has propounded over 360 special interrogatories. Plaintiff claims he only propounded 26 interrogatories prior to serving SROGs Set No. 12, which includes 68 special interrogatories. However, plaintiff acknowledges that he served SROGs Sets Nos. 13 and 14 — which include 31 and 4 special interrogatories, respectively — concurrently with SROGs Set No. 12. This court heard plaintiff's motion to compel further responses to the four interrogatories in SROGs Set No. 14 on July 15, 2026, and plaintiff has acknowledged in his reply here that he is not seeking to compel further answers to SROGs No. 13. Plaintiff did not address any special interrogatories served after SROGs Sets Nos. 12-14.

The number of interrogatories propounded by plaintiff and the sufficiency of his declaration justifying additional discovery relevant to this motion. In their initial papers, neither party properly submitted evidence supporting their arguments on these issues. Accordingly, the hearing of this motion was continued from July 22, 2026 to August 12, 2026 because the court lacked sufficient evidence to rule. The parties were ordered to do the following:

- No later than July 29, 2026, defendant shall file a supplemental declaration with the exhibits inadvertently omitted from its previous supporting declaration, along with any declaratory statements or exhibits evidencing the number of special interrogatories served by plaintiff in this matter. Defendant may concurrently file a supplemental opposition brief, not to exceed ten pages in length, addressing the sufficiency of plaintiff's SROGs Set No. 12 declaration justifying additional discovery and the totality of special interrogatories propounded by plaintiff on defendant in this matter.
- No later than August 5, 2026, plaintiff may likewise file a supplemental reply brief not to exceed ten pages and a supplemental declaration addressing those same issues.

On July 29, and August 5, 2026, respectively, the parties filed their supplemental papers. (Also on August 5, 2026, plaintiff filed amended supplemental papers, but did not explain what was amended.)

Defendant's supplemental response demonstrates that plaintiff has served, and withdrawn, multiple sets of discovery requests and has filed multiple motions to compel further responses. On March 18, 2025, plaintiff served 26 interrogatories on defendant as part of SROGs Set No. 1. (Supp. Lewis Decl., filed July 29, 2026, ¶ 18.) Between November 7 and November 11, 2025, plaintiff served SROGs Sets Nos. 6, 7, 8, 9, 10, and 11, which collectively included 141 interrogatories. (*Ibid.*) On November 14, 2025, plaintiff concurrently served SROGs Sets Nos. 12 and 13, which included an additional 68 and 31 interrogatories, respectively. (*Ibid.* [plaintiff is not pursuing a motion to compel additional responses to SROGs Set No. 13; see Plaintiff's Supp. Reply, at p. 3:17].) Thus, before plaintiff filed this motion to compel, defendant had responded to 26 special interrogatories in SROGs Set No. 1 and 31 special interrogatories from SROGs Set No. 13 — at total of 57 special interrogatories. That does not include the 141 additional interrogatories that plaintiff propounded through SROGs Sets Nos. 6-11, then later withdrew.

In her Supplemental Declaration, filed July 29, 2026, Ms. Lewis set out a chart showing the special interrogatories and requests for admission that were served, amended, and in some instances, withdrawn. The chart is reproduced below (the exhibit numbers refer to exhibits to Ms. Lewis's Supplemental Declaration):

Discovery	#	Total	Date	Withdrawn?	Declaration States	Exhibit
SROG 1	26	26	3/18/25	No	No declaration.	4
SROG 6	8		11/7/25	Yes	No declaration.	
SROG 7	31		11/7/25	Yes	"at least 26 SROGs."	
SROG 8	17		11/13/25	Yes	"at least 26 SROGs."	
SROG 9	31		11/13/25	Yes	"at least 26 SROGs."	
SROG 10	23		11/14/25	Yes	"at least 26 SROGs."	
SROG 11	31		11/14/25	Yes	"at least 26 SROGs."	
SROG 12	68	94	11/14/25	No	"at least 26 SROGs."	5
SROG 13	31	125	11/14/25	No	"at least 26 SROGs."	6
SROG 14	4	129	12/18/25	No	"at least 26 SROGs."	7
SROG 15	99		12/20/25	Yes	"at least 26 SROGs."	
SROG 16	3	132	1/21/26	No	"at least 26 SROGs."	8
SROG 18	4	136	1/28/26	No	"at least 26 SROGs."	9
SROG 19	31	167	1/31/26	No	"at least 26 SROGs."	10
SROG 20	47	214	2/1/26	No	"at least 26 SROGs."	11
SROG 21	8	222	3/16/26	No	"at least 217 SROGs."	12
SROG 22	12	234	3/16/26	No	"at least 225 SROGs."	13
SROG 23	25	259	4/3/26	No	"at least 237 SROGs."	14
SROG 24	99	358	4/3/26	No	"at least 262 SROGs."	15
SROG 25	25	383	5/6/26	No	"at least 262 SROGs."	16

RFA 2	16		11/7/25	Yes	No declaration.	
RFA 3	32		11/13/25	Yes	No declaration.	
RFA 4	40		11/14/25	Yes	No declaration.	
RFA 5	52	52	11/14/25	No	“at least 0 RFAs.”	17
RFA 6	4	56	4/3/26	No	“at least 52 RFAs.”	18

B. Legal Standard

Upon receipt of a response to special interrogatories, a propounding party may move for an order if the party deems (1) answers are evasive or incomplete; (2) the responding party’s referral to documents is unwarranted or inadequate; or (3) any objections are without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

As a threshold issue here, defendant argues that plaintiff has propounded more than 35 special interrogatories in this action and failed to provide sufficient justification for further interrogatories as required by statute.

A party may propound no more than 35 specially prepared interrogatories without attaching a declaration satisfying Code of Civil Procedure section 2030.040. (Code Civ. Proc., § 2030.030, subd (b).) The declaration must contain, among other things:

- (1) A statement that the declarant has considered the availability of the factors specified in section 2030.040 and that none of the alternative methods for obtaining the information is more convenient, less burdensome, or less expensive;
- (2) The total number of interrogatories previously propounded;
- (3) The specific statutory factor(s) that justify the additional interrogatories; and
- (4) An explanation of why the number of interrogatories is warranted.

(Code Civ. Proc., §§ 2030.040, 2030.050.) Where the declaration fails to meet these requirements, the excess interrogatories need not be answered. (Code Civ. Proc., §§ 2030.040, subd. (b); 2030.090, subd. (b).)

C. Discussion

While the scope of permissible discovery is broad, it is not unlimited. The Legislature has imposed limits on the number of special interrogatories that may be propounded. (Code Civ. Proc., § 2030.030, subd. (a)(1), (b).) Additional special interrogatories may be authorized, if the

propounding party can demonstrate a specific need for additional discovery. Plaintiff has not demonstrated such a need.

Plaintiff's declaration for additional discovery in support of SROGs Set No. 12, states in relevant part:

According to my knowledge at the time of writing this, I have previously propounded a total of at least 26 interrogatories to this party, of which at least 26 interrogatories were not official form interrogatories.

* * *

This set of interrogatories contains a total of 68 specially prepared interrogatories.

* * *

This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because “ The complexity or the quantity of the existing and potential issues in the particular case. “ , “ The financial burden on a party entailed in conducting the discovery by oral deposition. “ and “ The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought. “. There is complexity and quantity because there are dozens of potential witnesses and dozens of potential locations of relevant evidence. There would be a greater financial burden on me if this discovery were conducted instead by oral deposition because I have not yet obtained enough details to perform a possibly less expensive but useful deposition. Using these special interrogatories will be more expedient for both me and the responding party because they already know where all of the answers to these interrogatories are. In these special interrogatories, I am attempting to determine which witnesses have and have not been found, and I am attempting to determine which locations have and have not been searched. Thus far, it is unclear what the defendant San Mateo County Transit District has done regarding investigating because they have said that no evidence exists despite evidence existing such as the audio recording of the bus driver reporting the incident to the defendant San Mateo County Transit District.

(Supp. Lewis Decl., exh. A [plaintiff's SROGs Set No. 12, Declaration for Additional Discovery, at pp. 24-25, ¶¶ 4, 5, 8.]

Plaintiffs supporting declaration states that he served “at least 26” special interrogatories prior to SROGs Set No. 12. (Supp. Lewis Decl., exh. A [plaintiff's SROGs Set No. 12, Declaration for Additional Discovery, at p. 24, ¶ 4.]) This does not adequately acknowledge the 141 special interrogatories served, but later withdrawn, in SROGs Sets Nos. 6-11. Plaintiff's declaration further states that SROGs Set No. 12 contains 68 interrogatories. (*Id.*, at p. 24, ¶ 5.) However, the declaration does not mention the 31 interrogatories propounded concurrently with SROGs Set No. 13. Defendant argues that by failing to include withdrawn interrogatories and interrogatories propounded concurrently with SROGS 12, plaintiff's declaration “does not

present and accurate picture of the cumulative discovery burden” at the time the interrogatories were served.

However, more importantly, plaintiff’s declaration fails to provide a sufficient justification for the additional discovery sought.

A declaration justifying additional discovery must support why any of the following justifications is applicable to the lawsuit: (1) the complexity or the quantity of the existing and potential issues in the particular case; (2) the financial burden on a party entailed in conducting the discovery by oral deposition; (3) the expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought. (Code Civ. Proc., §§ 2030.030, 2030.040, 2030.050.)

This case is not complex. Plaintiff alleges that defendant failed to protect him from assault from a single individual while they were traveling on a bus operated by SamTrans. (See *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 785-786; *City and County of San Francisco v. Superior Court* (1994) 31 Cal.App.4th 45; Civ. Code, § 2100.)

Plaintiff contends that “there are dozens of potential witnesses and dozens of potential locations of relevant evidence.” Plaintiff fails to explain why the allegation that there may be dozens of potential witnesses establishes complex issues in this case necessitating additional discovery.

However, plaintiff’s special interrogatories in SROGs Set No. 12 are not directed at identifying witnesses to the alleged incident on the bus. For example, the first 15 special interrogatories in SROGs Set No. 12 are addressed to identifying who wrote which “part of any of the responses” or who “investigated” one or more of the requests in plaintiff’s RFPs. (See Lewis Supp. Decl., exh. B, beginning at p. 34 of 528.) SROGs Nos. 16-20 seek information about “all” bus drivers and busses driving routes along El Camino Real on May 17, 2024. SROGS 21-30 seek information about defendant’s interviews, with “all bus drivers” after the alleged incident, including in connection with responding to plaintiff’s RFPs. Such information is protected as at least qualified attorney work product. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 496-497 (*Coito*) [“witness statements obtained as a result of interviews conducted by an attorney, or by an attorney’s agent at the attorney’s behest, constitute work product a witness statement obtained through an attorney-directed interview is, as a matter of law, entitled to at least qualified work product protection.”]; *Nacht & Lewis, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214, 218.) SROGs 31-41 similarly seek the identities of “all bus driver supervisors” and information about defendant’s post-incident interviews with them.

As to the financial burden, plaintiff states that he “has not yet obtained enough details to perform a possible less expensive but useful deposition.” This fails to establish a clear financial burden justifying additional discovery and also fails to address why other discovery methods cannot be utilized in lieu of special interrogatories. And as to expedience, plaintiff declares that defendant “already know[s] where all the answers to these interrogatories are.” Defendant

responds that plaintiff lacks foundation and personal knowledge to assert that. Further, plaintiff fails to address why other discovery methods would not be more expedient.

In sum, plaintiff has not justified his request to serve more than 35 special interrogatories. Accordingly, plaintiff's motion to compel further responses to SROGs Set No. 12 is **DENIED** for failure to sufficiently justify the necessity of further discovery beyond the limit set in Code of Civil Procedure, section 2030.030, subdivision (b).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 9**

25-CIV-09639

ADERBAL OLIVEIRA JR. VS. DENIZE OLIVEIRA

ADERBAL OLIVEIRA JR.
DENIZE OLIVEIRA

SCOTT TALKOV

PLAINTIFF'S MOTION FOR 1) DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND 2) APPOINTMENT OF REFEREE

TENTATIVE RULING:

The court **GRANTS** plaintiff Aderbal Oliveira's "Motion for (1) Default Interlocutory Judgment of Partition; and (2) Appointment of Referee," filed March 17, 2026. The court has a few questions regarding plaintiff's "[PROPOSED] DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE," which was lodged with the court on March 17, 2026. Plaintiff's counsel is **ORDERED TO APPEAR** at the hearing on August 12, 2026 at 2:00 p.m. to address the issues identified below.

This is a partition action. The evidence submitted with this Motion indicates that the parties, who were formerly married, each own a 50% interest in the property, a single-family residence located at 1749 Shoreview Ave, San Mateo, California (the Property). (Williamson Decl., ¶¶ 2-3; exh. 1 [Grant Deed]; exh. 4 [Title Report].) Plaintiff seeks to have the Property partitioned, thereby ending the co-ownership relationship. Defendant appears to currently reside in the Property.

On May 12, 2017, a divorce judgment was entered by this court in Case No. FAM0115683 (Divorce Action), providing that "[in] June of 2024, the house will be placed on the market for sale." According to plaintiff, since that time, the Property has not been listed for sale, and no agreement has been reached to do so. Defendant was personally served with the Summons and Complaint in this case, but has defaulted. (Moving papers, Exhibits 7-8.)

The court intends to **GRANT** plaintiff's request for entry of an interlocutory judgment of partition, and to appoint attorney Matthew Taylor to serve as Partition Referee. Before doing so, however, the court requests that plaintiff's counsel (or Mr. Taylor) appear to discuss the following questions about the "[PROPOSED] DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE":

- The proposed order would grant the Referee the power and discretion to decide the appropriate manner of partition, which is not usually done. The Motion indicates that a partition in kind is not practicable here, and that a partition by sale is the most likely outcome. But the Motion does not ask the court to order a partition sale. Instead, it would provide the Referee with the discretion to decide the manner of partition. Normally, the court, not a referee, decides the manner of partition. Code of Civil Procedure, section 873.010, subdivision (a) states that the court appoints a referee to "divide or sell the property *as ordered by the court*." Counsel shall address why the interlocutory judgment

should not simply order a partition sale (particularly, given that the court in the dissolution case already found that the house should be listed for sale). The court is not inclined to grant the Referee the authority to decide the manner of partition.

- Section 3 “Listing Agreement” states that the Referee may hire *one or more* licensed real estate brokers/agents Why would more than one listing agent be necessary? The court has concerns about fees and costs involved in the partition sale process.
- Section 3 further states that “The Listing Agreement shall contain a provision that the broker’s commission for the Referee’s broker(s) shall not exceed 3.5%. The Court intends to change this to a maximum 2.5% commission to each broker or realtor, for total commissions of 5%.
- Section 9 states: “Contracts of the Referee with Professionals. The Referee is authorized to hire, employ, retain, and enter into and execute any contracts with any professionals or employees which the Referee deems necessary to assist them in the discharge of their duties.” What “contracts with professionals” does the Referee contemplate other than with the listing agent?
- Section 17 provides the Referee with authority and discretion to require defendant (who apparently resides in the Property) to vacate the Property, along with her personal belongings. Plaintiff’s moving papers also state: “The Parties shall vacate the Property prior to closing ...”

However, in paragraph 12 of the proposed Referee, Matthew Taylor’s, Declaration, he states: “While I do ask for the authority to obtain a writ of possession, as a practical matter, I generally allow cooperative parties to stay in possession of the Property during the partition.”

The court wishes to minimize the inconvenience and disruption to defendant, who apparently resides in the Property, possibly with children. The moving papers suggest that plaintiff wants the Referee to require that defendant vacate the Property within 30 days of entry of the Interlocutory Judgment. But that does not appear to be Mr. Taylor’s standard practice, and that may not be appropriate here. The court recognizes that in the parties’ May 2017 Judgment in the dissolution case, the court only stated that defendant may remain in the Property until June of 2024.

2:00 PM **LINE 10**

25-CIV-10154

ROBERT FOLEY, ET AL VS. COBALT POLYMERS, ET AL

ROBERT FOLEY
COBALT POLYMERS

GEORGE MOSCHOPOULOS
YANO L. RUBINSTEIN

DEFENDANTS COBALT POLYMERS AND BARRY SCHNUR'S DEMURRER TO CAUSE OF ACTIONS 2 AND 8-10 IN
PLAINTIFFS' COMPLAINT

TENTATIVE RULING:

Defendants Cobalt Polymers and Barry Schnur's Demurrer to the Second, Eighth, Ninth, and Tenth Causes of Action in plaintiff's Complaint are **SUSTAINED in part, with leave to amend** and **OVERRULED, in part**.

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Legal Standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

B. Second Cause of Action (Retaliation for Asserting Wage Rights, Labor Code, Section 98.6)

To establish a *prima facie* cause of action for retaliation under Labor Code, section 98.6, a plaintiff must prove three elements: (1) the plaintiff engaged in protected activity; (2) the employer subjected the plaintiff to an adverse employment action; and (3) a causal link exists between the protected activity and the adverse action. (*St. Myers v. Dignity Health* (2019) 44 Cal. App. 5th 301, 314.) The statute broadly prohibits any person from discharging, discriminating against, retaliating against, or taking any adverse action against an employee or applicant for employment who exercises rights protected under the Labor Code. (Lab. Code, §

98.6.) Making a written or oral complaint that the employee is owed unpaid wages is an enumerated category of protected activity. (*Ibid.*)

Defendants argue that plaintiff has not stated a claim for retaliation based on a complaint of unpaid wages because plaintiff's 40% equity interest in defendant Cobalt Polymers does not constitute wages. Incentive compensation such as bonuses, profit-sharing plans, and restricted stock can constitute wages under Labor Code, sections 200-202, with the key inquiry being whether the equity compensation is provided as payment for labor performed by the employee. (*Schachter v. Citigroup, Inc.* (2009) 47 Cal.4th 610, 621 (*Schachter*).)

Plaintiff alleges that "[i]n recognition of Foley's efforts and exceptional performance, and in consideration for Foley's continued employment with Cobalt, Defendant Schnur agreed to grant, and in fact granted, to Foley 40% of Cobalt's common stock as of January 1, 2011." (Complaint, ¶ 15.) However, plaintiff Robert Foley's complaint is not that he did not receive 40% of Cobalt's shares. Rather, he seeks "recognition and valuation of his 40% equity interest" and contends that he did not receive "the corresponding distributions he should have received since 2011." (*Id.*, ¶ 47.) Defendants argue that while a stock grant may be compensation for services performed as an employee, the right to receive dividends or other distributions is a right of ownership. That is, they argue that only a shareholder has the right to receive dividends and distributions. (Mot., at p. 5; Reply, at pp. 4-5.)

Where a shareholder is also an employee, the funds they receive from the company may be wages or dividends. (See *Schachter, supra*, 47 Cal.4th at p. 621; *Perata v. Oakland Scavenger Co.* (1952) 111 Cal.App.2d 378 [the portion of the company's payments to employee-shareholders that reflected their labor were wages while the remainder was a dividend]; *Kohn v. Kohn* (1950) 95 Cal.App.2d 708, 715 ["however denominated, a distribution of earnings to corporate stockholders may be treated as dividends where that is their practical effect and justice will be served by so treating them."].)

Wages reflect "labor, work, or service" on behalf of an enterprise. Labor Code, section 200, defines "wages" to "include[] all amounts for labor performed by employees of every description, whether the amount is fixed or ascertained by the standard of time, task, piece, commission basis, or other method of calculation." (Lab. Code, § 200, subd. (a).) "Labor" is defined to "include[] labor, work, or service whether rendered or performed under contract, subcontract, partnership, station plan, or other agreement if the labor to be paid for is performed personally by the person demanding payment." (*Id.*, subd. (b).) Dividends are not received in return for "labor," but rather are an attribute of ownership. (See *Stephenson v. Drever* (1997) 16 Cal.4th 1167, 1177 ["A shareholder also has valuable property rights. Foremost among these is the right to receive dividends. [citation] When a dividend is lawfully declared by the board of directors it vests in the owner of record of the shares and creates a debt in his favor against the corporation."].)

Here, plaintiff has not alleged that he did not receive his salary. His complaint is that he has not received "distributions" related to his 40% shareholdings for the past fifteen years. That

is not a claim for retaliation arising out of a claim for unpaid wages, but rather is a claim that he was deprived of a right accruing to him as a shareholder.

The Demurrer to this cause of action is accordingly **SUSTAINED with leave to amend**.

C. Eighth Cause of Action (Declaratory Relief)

Defendants argue that this cause of action restates the claims which are put at issue by plaintiff's other causes of action. Declaratory relief may be sought alone or with other relief. (*Columbia Picture Corp. v. De Toth* (1945) 26 Cal.2d 753, 761.) The Complaint seeks a judicial declaration resolving the parties' rights and duties with respect to the following issues:

- a. Plaintiff holds a valid and enforceable 40% ownership interest in Cobalt;
- b. Defendants owe fiduciary duties to plaintiff arising from his status as a minority shareholder;
- c. Defendants are obligated to recognize, account for, and fairly value plaintiff's ownership interest;
- d. Defendants may not forfeit, repudiate, or deny plaintiff's earned ownership interest through unilateral action or termination of employment; and
- e. Plaintiff is entitled to equitable relief, including accounting, valuation, and such further relief as may be appropriate under the Corporations Code and principles of equity.

(Complaint, ¶ 117.)

There is no dispute that there is an actual, present controversy between the parties as to these issues. Plaintiff argues that verdicts on his other causes of action will not definitively establish whether he owns a 40% interest in defendant Cobalt Polymers. It is correct that money damages awarded pursuant to plaintiff's other causes of action would not resolve that question as it pertains to "forward-looking consequences for corporate governance, information access, future distributions, and the parties' ongoing obligations." (Opp., at p. 6:22-23.) The cause of action for declaratory relief is therefore proper.

The Demurrer to this cause of action is accordingly **OVERRULED**.

D. Ninth Cause of Action (Breach of Implied in Fact Contract)

The elements of a claim for breach of an implied-in-fact contract require allegations of facts showing: (1) parties capable of contracting; (2) their consent; (3) a lawful object; and (4) sufficient consideration. (Civ. Code, § 1550.) Defendants argue that the Complaint does not allege when the agreement was formed, what specific conduct manifested mutual assent, the terms of repayment, and whether the contract was for an illegal purpose.

The Complaint alleges that parties entered the implied-in-fact contract during plaintiff's employment and tenure as an officer and shareholder of defendant Cobalt Polymers. (Complaint, ¶ 121.) Defendants' alleged conduct reflecting the agreement allegedly included "making payments to Plaintiff and toward Plaintiff's tax liabilities over an extended period of time, acknowledging that those liabilities arose from ownership attribution rather than cash compensation, and expressly characterizing the payments as advances against Plaintiff's future equity value. (*Id.*, ¶ 123.) The terms of repayment are alleged to be "that the corporation would pay Plaintiff's personal tax liabilities arising from ownership-attributed income, and that such payments would be treated as a loan or advance to Plaintiff, to be reconciled and repaid solely from future equity distributions, liquidation proceeds, or other monetization of Plaintiff's ownership interest, and not as a personal obligation requiring immediate repayment." (*Id.*, ¶ 122.) These allegations sufficiently plead the ultimate facts required to meet the elements of the cause of action.

As to the issue of whether the contract was formed for an unlawful purpose, the Complaint does not allege an unlawful purpose.

The Demurrer to this cause of action is accordingly **OVERRULED**.

E. Tenth Cause of Action (Promissory Estoppel)

The elements of a cause of action for promissory estoppel are: (1) a clear and unambiguous promise; (2) reasonable and foreseeable reliance by the party to whom the promise is made; (3) actual reliance; and (4) injury to the party asserting estoppel caused by the reliance. (*Laks v. Coast Fed. Sav. & Loan Ass'n* (1976) 60 Cal.App.3d 885, 890.) Defendants argue that the Complaint omits facts that are necessary to establish that the promise was clear and unambiguous such as which individual made the promise, when it was made, its specific terms, and whether it was oral or written. The Complaint alleges a promise "that the company would pay Plaintiff's tax liabilities arising from ownership-attributed income for which Plaintiff did not receive corresponding cash distributions, and that such payments would be treated as a loan or advance to be reconciled solely through future equity distributions or liquidation proceeds." (Complaint, ¶ 130.) Those terms are sufficiently definite to form a clear and unambiguous promise, and further specificity is not required of a promissory estoppel claim.

The Demurrer to this cause of action is accordingly **OVERRULED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 11**

25-CIV-10154

ROBERT FOLEY, ET AL VS. COBALT POLYMERS, ET AL

ROBERT FOLEY
COBALT POLYMERS

GEORGE MOSCHOPOULOS
YANO L. RUBINSTEIN

DEFENDANTS COBALT POLYMERS AND BARRY SCHNUR'S MOTION TO STRIKE VARIOUS PORTIONS OF COMPLAINT

TENTATIVE RULING:

Defendants Cobalt Polymers and Barry Schnur's Motion to Strike portions of plaintiff's Complaint is **DENIED**.

Defendants move to strike references to punitive damages and alter ego allegations from plaintiff's Complaint.

A. Punitive Damages

For punitive damages allegations to survive a motion to strike, a plaintiff must plead ultimate facts, rather than mere legal conclusions, showing that the defendant engaged in conduct constituting malice, oppression, or fraud as defined by Civil Code section 3294. Courts reviewing the ruling apply a de novo standard and read all allegations as a whole, in context, assuming their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253; *Today's IV, Inc. v. Los Angeles County Metro. Transportation Auth.* (2022) 83 Cal.App.5th 1137.)

Here, plaintiff points to his specific allegations of defendants' actions taken with knowledge of plaintiff's right to be free from retaliation and rights as a family member of a protected whistleblower, termination of plaintiff William Foley merely because his father was a whistleblower, and intentional abuse of control, as being ultimate facts rather than mere statutory language. (Opp., at p. 11:11-35; see Complaint, ¶¶ 65, 79, 80, 103.) Taking these allegations as true, and reading them as a whole in the context of the pleading, they sufficiently allege malice or oppression under Civil Code section 3294.

The Motion to Strike is accordingly **DENIED** as to the punitive damages allegations.

B. Alter Ego Allegations

Alter ego allegations are sufficient where they allege specific, non-conclusory facts satisfying a two-pronged test: (1) such a unity of interest and ownership between the corporation and its equitable owner that their separate personalities do not in reality exist, and (2) an inequitable result would follow if the acts in question are treated as those of the corporation alone. (See *JPV I L.P. v. Koetting* (2023) 88 Cal. App. 5th 172; *Toho-Towa Co. v. Morgan Creek Prods.* (2013) 217 Cal.App.4th 1096 (*Toho-Towa.*) Application of the alter ego doctrine does not depend upon pleading or proving fraud. (*Toho-Towa, supra*, 217 Cal.App.4th 1096.) It is sufficient to allege that adherence to the fiction of the separate existence of the corporation would

promote injustice. (*Misik v. D'Arco* (2011)197 Cal. App. 4th 1065; *Cam-Carson, LLC v. Carson Reclamation Auth.* (2022) 82 Cal. App. 5th 535.)

Here, plaintiff alleges that defendant Schnur “personally committed the frauds and violated the laws as set forth in this complaint, and who has hidden and currently hides behind Cobalt ... to perpetrate frauds, circumvent statutes, and/or accomplish other wrongful or inequitable purposes”; “derives actual and significant monetary benefits by and through his unlawful conduct, and by using Cobalt ... as the funding source for his own personal expenditures”; that defendants “were segregated to appear as though separate and distinct for purposes of perpetrating a fraud, circumventing a statute, or accomplishing some other wrongful or inequitable purpose”; that Defendant Cobalt “does not comply with all requisite corporate formalities to maintain a legal and separate corporate existence”; and that “[t]he business affairs of Schnur, Cobalt, and DOES 1-50 are, and at all times relevant were, so mixed and intermingled that the same cannot reasonably be segregated.” (Complaint, ¶ 10(a)-(e).) These facts allege such a unity of interest and ownership between the corporation and its equitable owner that their separate personalities do not in reality exist, and are such that an inequitable result would follow if the acts in question are treated as those of the corporation alone.

The Motion to Strike is accordingly **DENIED** as to alter ego allegations.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 12**

26-CIV-00382

SANTOS PEREZ VS. ABM INDUSTRIES INCORPORATED, ET AL

SANTOS PEREZ
ABM INDUSTRIES INCORPORATED

W. ZEV ABRAMSON
ALEJANDRO G. RUIZ

DEFENDANT ABM INDUSTRIES INCORPORATED'S MOTION TO COMPEL ARBITRATION

TENTATIVE RULING:

The Motion to Compel Arbitration brought by defendant ABM Industries, Inc. is **GRANTED**.

Plaintiff's Objections to the Declaration of Paige Tamada

The first of the fifteen Objections to the Declaration of Paige Tamada is directed to the entire Declaration, and is **SUSTAINED**. Thus, the other fourteen need not be reached.

Plaintiff's Objections to the Declaration of Scott J. Saylin

Objections Nos. 1 and 3: **OVERRULED**.

Objection No. 2: **SUSTAINED**. (Evid Code, § 1152, subd. (a).)

Defendant's Evidentiary Objections to the Declaration of Santos Perez are **OVERRULED**.

A. Background

ABM hired plaintiff on about June 9, 2023, as a janitor. On May 21, 2025, plaintiff injured his back at work, which he reported to one of his managers, defendant Herber Rodriguez, the next day. Plaintiff was on medical leave for the resulting disability from May 22, 2025, through August 7, 2025. He returned to work with medical restrictions on August 8, 2025, when defendant Rodriguez was out. When Rodriguez returned to work on about August 20, 2025, he refused to continue the accommodations that other managers had made and immediately assigned plaintiff duties that exceeded his restrictions. When plaintiff explained that he could not perform his regular duties without the accommodation that had been approved, Rodriguez terminated plaintiff's employment.

ABM has filed this Motion to ask the court to compel plaintiff to arbitrate this matter pursuant to the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA), and to stay this action pending arbitration. (Code Civ. Proc., §§ 1281.2 & 1281.4.)

B. Governing Law

Under the FAA, the court's role is to determine "whether a valid agreement to arbitrate exists and, if it does, ... whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Sys., Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130, citations omitted.) The governing California statute provides, in pertinent part, that:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.

(Code Civ. Proc., § 1281.2, subds. (a) & (b).)

C. The Arbitration Agreement

1. The Arbitration Agreement Encompasses Plaintiff's Claims

Defendant has supplied a copy of the Arbitration Agreement. (Suppl. Tamada Decl., ¶ 9, exh. B.) The Arbitration Agreement sets out its scope as follows:

A "Covered Claim" is, to the maximum extent permissible pursuant to federal law, any claim that the Company has against me or that I have against the Company, its past, present, and future parent(s), subsidiaries, affiliates, and/or their respective past, present, and future officers, directors and/or employees, including but not limited to claims arising and/or relating in any way to my hiring, my employment or association with, my compensation, and/or the end of my employment with, the Company.

(Suppl. Tamada Decl., ¶ 9; exh. B, at p. 24 [Arbitration Agreement, part A].)

Each cause of action in the Complaint falls within this broad scope, including the seventh cause of action for defamation, or slander *per se*, which alleges that defendant stated that "Plaintiff was faking his disability and/or need for workplace accommodations which ultimately resulted in his termination" and "asserted that Plaintiff was a poor employee, was terminated for cause, and not deserving of gainful employment." (Complaint, ¶ 104.)

2. The Evidence Shows that Plaintiff Signed the Arbitration Agreement

Plaintiff challenges the enforceability of the Arbitration Agreement. His declaration contradicts defendant's contention that plaintiff signed the Arbitration Agreement electronically (see Perez Decl., Opp., ¶¶ 6-13), and electronic signatures are the only kind that the Tamada Declaration attempts to show. (Suppl. Tamada Decl., ¶¶ 7-17, & exhs. A-E). However, even though plaintiff declares that he does not recall signing the Arbitration Agreement, defendant's

evidence shows that plaintiff logged into defendant's onboarding system with his email address, authenticated his identity with a onetime passcode, and accepted the Arbitration Agreement. Plaintiff has not offered any evidence that anyone else signed the agreement in his place or on his behalf. Though plaintiff challenges defendant's showing, plaintiff's declaration that he does not remember signing the agreement does not overcome nor even necessarily conflict with defendant's showing that he did.

3. The Arbitration Agreement is Minimally Procedurally Unconscionable

Plaintiff also challenges the validity of the Arbitration Agreement for unconscionability. As to procedural unconscionability, plaintiff asserts that although he is not comfortable reading English, he was presented with about ten documents to sign in approximately five minutes and told that he could not take them home, so that he had insufficient time to read or understand them. Plaintiff further asserts that the Arbitration Agreement's allocation of attorney's fees, its binding plaintiff to rules with which he was not provided, and its waiver and third-party provisions which benefit defendant alone all constitute its substantive unconscionability.

However, even a contract of adhesion is not necessarily procedurally unconscionable:

It is well settled that adhesion contracts in the employment context, that is, those contracts offered to employees on a take-it-or-leave-it basis, typically contain some aspects of procedural unconscionability." Assuming the Agreement here is adhesive in character, "this adhesive aspect of an agreement is not dispositive." Courts have observed that "[w]hen, as here, there is no other indication of oppression or surprise, 'the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high.' [Citations.]

(*Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1470, multiple citations omitted.)

Where he was asked to sign various documents by defendant when he was first employed, it was plaintiff's burden to take steps to learn the content of the agreements he signed:

Generally, a party may not avoid enforcement of an arbitration provision because the party has limited proficiency in the English language. If a party does not speak or understand English sufficiently to comprehend a contract in English, it is incumbent upon the party to have it read or explained to him or her.

An exception to the general rule applies when a party was fraudulently induced to sign the contract. This exception is inapplicable here, because Caballero does not contend Premier Care defrauded him or prevented him from learning the contract's terms. He simply states that, to the best of his recollection, he was not presented with an Arbitration Agreement in Spanish or an Arbitration Agreement in English that was explained to him. He cites no authority suggesting it was Premier Care's initial burden to ascertain whether he could understand the English version. All Caballero had to do was tell Elstein or one of Premier Care's Spanish-speaking

employees that he cannot read English and the burden would have shifted to Premier Care to explain the contents of the Arbitration Agreement. His decision to sign a document he could not read is not a basis for avoiding an arbitration agreement.

(*Caballero v. Premier Care Simi Valley LLC* (2021) 69 Cal.App.5th 512, 518-19 (*Caballero*), multiple citations omitted.)

Plaintiff does not claim that he was fraudulently induced to sign the Arbitration Agreement. Rather, he declares that:

7. I was given about five minutes to sign approximately ten documents. No one told me that I could take the documents home, and I did not have enough time to read or understand them before signing.

8. No one ever told me that I was giving up my right to a jury trial or my right to go to court. No one explained arbitration to me. No one offered to explain the documents to me in Spanish or gave me a version of them in Spanish.

9. No one ever gave me a Mutual Arbitration Agreement to sign. I did not ask for a Spanish copy of any arbitration agreement because no one ever told me that such a document existed.

(Perez Decl., ¶¶ 7-9.)

Plaintiff's declaration does not show that the burden to explain the contents of the Arbitration Agreement shifted to defendant under *Caballero*. Although plaintiff states that no one told plaintiff that he could take the documents home, nor offered him a Spanish translation, nor notified him that there was such a document as a Spanish translation, he does not aver that he told defendant that he could not read English, nor that he was otherwise prevented from learning the terms of the agreement that he signed.

Meanwhile, defendant's evidence shows that plaintiff signed the Arbitration Agreement without any time constraint. (Suppl. Tamada Decl., ¶ 13.) Defendant's evidence also shows that plaintiff had the option to download the Offer Letter that includes the arbitration agreement. (*Id.*, ¶¶ 12 & 9, & exh. B).

4. The Arbitration Agreement is Not Substantively Unconscionable

In his Opposition, plaintiff asserts that the Arbitration Agreement is substantively unconscionable as to its allocation of attorney's fees. The Arbitration Agreement provides that, "The parties shall pay their own attorneys' fees and litigation costs associated with the arbitration, *except as otherwise awarded by the arbitrator.*" (Suppl. Tamada Decl., ¶ 9, exh. B, at p. 26 [Arbitration Agreement, part C, emphasis added].) Defendant contends that the Arbitration

Agreement *allows* the arbitrator to award fees as would a judge. Plaintiff's authority clarifies that:

In a FEHA case, unless it would be unjust, a prevailing plaintiff should recover attorney fees, but a prevailing defendant is awarded fees only if the case was frivolous or filed in bad faith. [citations] Here, the agreements provide that the prevailing party is entitled to attorney fees, without any limitation for a frivolous action or one brought in bad faith. This violates *Armendariz*. [citations] Defendants argue this merely means the arbitrator has the authority to impose attorney fees in line with FEHA. But nothing in the agreement or the arbitration manual supports this claim.

(*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1249 (*Wherry*), citations omitted.)

Thus, if the arbitrator were merely allowed but not constrained to comply with federal law, the Arbitration Agreement would not escape substantive unconscionability under *Wherry*. However, the Arbitration Agreement expressly constrains the arbitrator's award of attorney's fees by law, providing that, "The arbitrator can order the same individual remedies that a judge could in a court of law, including injunctive relief and *attorneys' fees to the extent permitted by law*["]." (Suppl. Tamada Decl., ¶ 9, exh. B, at p. 26 [Arbitration Agreement, part C, emphasis added].)

Plaintiff further asserts that the Arbitration Agreement is substantively unconscionable because it binds plaintiff to rules with which he was not provided. In its Reply, ABM asserts that failure to provide the rules is not unconscionable, citing *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237 (*Baltazar*). *Baltazar* provides that:

[Plaintiff's] argument accordingly might have force if her unconscionability challenge concerned some element of the AAA rules of which she had been unaware when she signed the arbitration agreement. But her challenge to the enforcement of the agreement has nothing to do with the AAA rules; her challenge concerns only matters that were clearly delineated in the agreement she signed. [Defendant]'s failure to attach the AAA rules therefore does not affect our consideration of [Plaintiff]'s claims of substantive unconscionability.

(*Baltazar, supra*, 62 Cal.4th at p. 1246.)

Here, plaintiff's challenge does not concern an element of the rules which were not provided, but only matters that are clearly delineated in the Arbitration Agreement, and thus falls under *Baltazar*.

In response to plaintiff's assertions that the Arbitration Agreement's waiver and third-party provisions benefit defendant alone, ABM shows that there are no carveouts for defendant's claims against plaintiff. (Suppl. Tamada Decl., ¶ 9, exh. B, at p. 26 [Arbitration Agreement, part A].)

Further, the third-party language extends coverage of the Arbitration Agreement to claims brought against a third party, but not in a one-sided manner:

This Agreement includes any Covered Claim brought against a third-party, including but not limited to any client(s) and/or vendor(s) of the Company, and this provision can be enforced by any such third-party through a motion to compel arbitration, to the extent necessary.

(*Ibid.*)

5. The Agreement Applies to All Defendants

Defendant Rodriguez is entitled to the benefit of the agreement. “If, as the complaint alleges, the individual defendants, though not signatories, were acting as agents for the Rams, then they are entitled to the benefit of the arbitration provisions.” (*Dryer v. Los Angeles Rams* (1985) 40 Cal.3d 406, 418, citation omitted.)

D. Conclusion

The Motion is **GRANTED**, and this action is **STAYED** pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 13**

26-UDL-00556

CARLOTTA CT., LLC VS. BRITTANY L PICKETT ROSE

CARLOTTA CT., LLC
BRITTANY L PICKETT ROSE

STEVEN T. NAUMCHIK

DEFENDANT'S MOTION FOR RELIEF FROM DEFAULT

TENTATIVE RULING:

See Line 14.

2:00 PM **LINE 14**

26-UDL-00556

CARLOTTA CT., LLC VS. BRITTANY L. PICKETT ROSE

CARLOTTA CT., LLC
BRITTANY L. PICKETT ROSE

STEVEN T. NAUMCHIK

DEFENDANT'S MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

Defendant's motion to quash service is **GRANTED**. The motion to set aside the default judgment is **DENIED as moot**.

On June 4, 2026, pursuant to an application filed on June 3, 2026, the civil commissioner issued an order authorizing posting and mailing of the summons and complaint. (June 4, 2026 Order.) Pursuant to Code of Civil Procedure, section 415.45, subdivision (b), "[t]he court shall order the summons to be posted on the premises in a manner most likely to give actual notice to the party to be served and direct that a copy of the summons and of the complaint be forthwith mailed by certified mail to such party at the party's last known address." Subsection (c) provides that "[s]ervice of summons in this manner is deemed complete on the 10th day after posting and mailing."

The process server's declaration states that he served defendant "[b]y posting and mailing" the summons and complaint "per C.C.P 415.45 at the address shown in item #4, on Jun 6, 2026 at 3:39 PM and mailing of the same by certified mail, to the address shown in item #4, on Jun 6, 2026 from Santa Clara, California."

Defendant's declaration states that she was "undergoing medical care during the relevant time period. As a result, I was not consistently at the property, and I was not in a position to discover any alleged posting. I was not aware that a posting was actually done at the premises." She further states that "[t]he certified mailing associated with the posting procedure was returned to sender. I understand this from the USPS tracking history showing that the item was marked "Unclaimed/Being Returned to Sender" and later "Delivered, To Original Sender." (See USPS tracking, attached to Declaration of Brittany L. Pickett-Rose.) Indeed, it appears that mailing was never successfully completed and the package was returned to the sender on July 13, 2026. (*Ibid.*) Accordingly, service was not completed and is ordered **QUASHED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.



POSTED: 3:00 PM